



File No.: EXP202300779

## RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: On November 15, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against VODAFONE ONO, S.A.U. (hereinafter, the respondent), through the Agreement transcribed below:

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File No.: EXP202300779

## AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

### FACTS

FIRST: Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on December 7, 2022. The complaint is directed against VODAFONE ONO, S.A.U. with NIF A62186556 (hereinafter, VODAFONE). The reasons for the complaint are as follows:

The complainant states that after a telephone conversation with the Customer Service Department of VODAFONE on December 5, 2022, he received an email with attached files for the verification of the change of bank account.

In the document for the verification of the change of bank account, in addition to the complainant's name, ID number, address, and bank account, the personal data of other individuals are included.

Along with his complaint, he submits the aforementioned document.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), this complaint was forwarded to VODAFONE for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set out in data protection regulations.

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The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on February 6, 2023, as evidenced by the acknowledgment of receipt in the file.

On July 31, 2023, this Agency received a response indicating "... FIRST.- The Agency requests "SUBMISSION OF THE TECHNICAL REPORTS OR RECOMMENDATIONS PREPARED BY THE DATA PROTECTION OFFICER OR BY THE SECURITY OFFICER, WHATEVER THEIR FORMAT, REGARDING THE PROCESSING FOR WHICH INFORMATION IS REQUESTED, AS WELL AS ABOUT THE SUBSEQUENT ACTIONS TAKEN OR THEIR ABSENCE, DERIVED FROM THE SAID TECHNICAL REPORTS OR RECOMMENDATIONS."

After a thorough investigation carried out in my client's internal systems, it is made clear to this Agency that the complainant, after requesting the modification of his bank account, received the acceptance document for the change of bank account with some data of other interested parties due to an error by the agent who processed the sending of the document. The cause of this incident was the result of human error by the Customer Service agent at Vodafone who processed the document. The management of this document is manual by the agents who handle the request, and in this case, the agent, when managing the sending of the document to the complainant before sending it to the client, mistakenly sent the document with data that did not correspond to the complainant. As it is a specific and isolated failure, it has currently been resolved, and a letter has been sent to Mr. A.A.A. informing him of the reasons that caused his complaint and the measures taken by Vodafone.

SECOND.- The Agency requests "THE DECISION MADE REGARDING THIS COMPLAINT."

Following the notification of this complaint, my client proceeded to investigate the events that occurred and has verified that the claimed incident is currently resolved. In this regard, after studying the reason that originated it, it has been verified that the confirmation form with Mr. A.A.A.'s new bank account was sent by a Customer Service agent after a telephone conversation with the complainant. This template is filled out manually by the agent, and it has been confirmed that the agent accidentally did not process the document correctly to be sent to the client, thus sending a very limited number of data of interested parties, specifically the names and surnames of nine people; and three ID numbers, of which it is not possible to identify who their holders are..."

THIRD: On March 7, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: According to the report obtained from the AXESOR tool, the entity VODAFONE ONO, S.A.U. is a large company established in 2000, with a turnover of €1,217,584,000 in 2022.

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3/13

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

### Preliminary Issues

In the present case, the complainant received an email that included various files for the verification of a change in bank account details. In the document verifying the change of bank account, in addition to the complainant's name, ID number, address, and bank account, the personal data of other individuals are included, specifically the names and surnames of nine individuals; and three ID numbers.

According to Article 4.1 of the GDPR, there is a processing of personal data, since VODAFONE carries out, among other processes, the collection, storage, and use of the following personal data of its customers, such as: name and surnames, ID number, bank account.

VODAFONE carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR.

Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" (hereinafter security breach) as "all breaches of security that result in the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data."

In this case, there is a personal data security breach under the circumstances indicated above, categorized as a confidentiality breach; as a result of sending an email to the complainant that included a file containing the personal data of other customers, thereby revealing these individuals' data to the complainant, specifically the names and surnames of nine individuals; and three ID numbers.

III

### Article 5.1.f) of the GDPR

Article 5.1.f) "Principles relating to processing" of the GDPR establishes:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by means of appropriate technical or organizational measures ('integrity and confidentiality')."

In this case, it is established that unauthorized access to the personal data of other VODAFONE customers has occurred, violating the principle of confidentiality, as an email was sent to the complainant that included a file containing the personal data of other customers, thereby revealing these individuals' data to the complainant, specifically the names and surnames of nine individuals; and three ID numbers.

In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to the outcome of the instruction, it is considered that the known facts could constitute an infringement attributable to VODAFONE for violation of Article 5.1.f) of the GDPR.

IV

Classification of the infringement of Article 5.1.f) of the GDPR

If confirmed, the aforementioned infringement of Article 5.1.f) of the GDPR could imply the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that:

"Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

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5/13

For the purposes of the statute of limitations, Article 72 "Very Serious Offenses" of the LOPDGDD states:

"1. In accordance with the provisions of Article 83.5 of Regulation (EU) 2016/679, the following offenses are considered very serious and will be subject to a three-year statute of limitations for substantial violations of the articles mentioned therein, particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

V

Sanction for the violation of Article 5.1.f) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to the outcome of the instruction, it is appropriate to grade the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR.

As aggravating factors:

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b) the intentionality or negligence in the violation;

In this regard, the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the offender does not behave with the required diligence. In assessing the degree of diligence, particular consideration must be given to the professionalism or lack thereof of the subject, and there is no doubt that, in the case now examined, when the activity of the

appellant involves constant and abundant handling of personal data, it must be emphasized that rigor and exquisite care must be taken to comply with the legal provisions in this regard. [Judgment of the National Court of 17/10/2007 (rec. 63/2006)]

Furthermore, it is considered appropriate to grade the sanction to be imposed according to the criteria established in section 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD:

As aggravating factors:

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b) The connection of the offender's activity with the processing of personal data.

VODAFONE is engaged in the operation of networks and the development of activities and services through electronic communications, telecommunications, information society services, multimedia or value-added services, as well as the marketing and implementation of electronic and computer systems and equipment, a professional activity subject to the duty of confidentiality regarding the personal data of its clients, which involves continuous data processing.

In the contracting of the services provided, numerous personal information related to its clients is collected.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the violation committed by infringing the provisions of Article 5.1.f) of the GDPR, allows for an initial sanction of €50,000 (FIFTY THOUSAND EUROS).

VI

Article 32 of the GDPR

Article 32 "Security of processing" of the GDPR states:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law."

It is noteworthy that in the written allegations received by this Agency, VODAFONE acknowledges the events that occurred, stating that "...After an exhaustive investigation carried out in the internal systems of my represented party, it is revealed to this Agency that the complainant, after requesting the modification of their bank account, received the document of acceptance of the bank account change with some...

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data of other interested parties due to an error by the agent who processed the sending of the document. The cause of this incident was the result of human error on the part of the Customer Service agent of Vodafone who processed the document...”

While claiming that “...this incident was the result of human error...” does not, in any case, distort the reality of the facts that occurred nor does it exempt VODAFONE from its responsibility as the data controller of its customers' personal data.

VODAFONE, as the data controller, is obliged to apply appropriate technical and organizational measures to ensure a level of security appropriate to the risk presented by the data processing. These measures are not only measures of the IT systems but also organizational measures of a human factor.

Article 32 of the GDPR does not establish a list of security measures that are applicable according to the data being processed, but rather states that the controller and the processor shall implement technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, and the risks of likelihood and severity for the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the identified risk, indicating that the determination of the technical and organizational measures must be made taking into account: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification process (which is not an audit), evaluation, and assessment of the effectiveness of the measures.

Consequently, in the present case and at the time the breach occurred, it is evident that VODAFONE lacked reasonable security measures based on the estimated potential risks, as well as that the information and training directed at the personnel who were to carry out the processing of personal data were entirely insufficient.

For all these reasons, in accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement attributable to VODAFONE for violation of Article 32 of the GDPR.

## VII

### Classification of the infringement of Article 32 of the GDPR

If confirmed, the aforementioned infringement of Article 32 of the GDPR could imply the commission of the infringements classified in Article 83.4 of the GDPR which under the heading “General conditions for the imposition of administrative fines” provides:

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“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 2% of the total global annual turnover of the previous financial year, opting for the higher amount:

5) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 73 “Infringements considered serious” of the LOPDGDD indicates:

“Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following shall be

considered serious and shall be subject to a two-year statute of limitations:

...

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, in the terms required by Article 32.1 of Regulation (EU) 2016/679.

VIII

Sanction for the infringement of Article 32 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is appropriate to grade the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR.

As aggravating factors:

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b) the intentionality or negligence in the infringement;

In this same sense, the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted on the rigor and exquisite care to comply with the legal provisions in this regard. [Judgment of the National Court of 17/10/2007 (rec. 63/2006)]

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9/13

Furthermore, it is considered appropriate to adjust the sanction to be imposed according to the criteria established in section 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD:

As aggravating factors:

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b) The link between the infringer's activity and the processing of personal data.

VODAFONE is engaged in the operation of networks and the development of activities and services through electronic communications, telecommunications, information society services, multimedia or value-added services, as well as the marketing and implementation of electronic and computer systems and equipment, a professional activity subject to the duty of confidentiality regarding the personal data of its clients, which entails continuous data processing.

In the contracting of the services provided, numerous personal information related to its clients is collected.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 32 of the GDPR, allows for an initial sanction of €20,000 (TWENTY THOUSAND EUROS).

IX

Adoption of measures

If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is noted that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate

such conduct to initiate further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,  
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against VODAFONE ONO, S.A.U., with NIF A62186556, for the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of the GDPR and for the alleged infringement of Article 32 of the GDPR, classified in Article 83.4 of the GDPR.

SECOND: TO APPOINT C.C.C. as instructor and B.B.B. as secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, without prejudice to what results from the instruction, the sanction that may correspond would be,

- For the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of that regulation, an administrative fine of €50,000.00
- For the alleged infringement of Article 32 of the GDPR, classified in Article 83.4 of that regulation, an administrative fine of €20,000.00

FIFTH: TO NOTIFY this agreement to VODAFONE ONO, S.A.U., with NIF A62186556, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number indicated in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a 20% reduction of the sanction to be imposed in this procedure. With the application of this reduction, the sanction would be established at €56,000.00, resolving the procedure with the imposition of this sanction.

Likewise, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be established at €56,000.00, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative to the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the initiation of the procedure. The voluntary payment of the referred amount

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11/13

In the previous paragraph, this may be done at any time prior to the resolution. In this case, if both reductions were to apply, the amount of the penalty would be set at 42,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the penalty.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (56,000.00 euros or 42,000.00 euros), you must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name

of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of deposit to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On December 13, 2023, the respondent has proceeded to pay the penalty in the amount of 56,000 euros using one of the two reductions provided for in the previously transcribed Initiation Agreement. Therefore, the acknowledgment of responsibility has not been established.

THIRD: The payment made entails the renunciation of any action or appeal in the administrative route against the penalty, in relation to the facts referred to in the Initiation Agreement.

#### LEGAL GROUNDS

I

Competence

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12/13

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate penalty.

2. When the penalty is solely pecuniary or when it is possible to impose a pecuniary penalty and another non-pecuniary penalty but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the penalty is solely pecuniary, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed penalty, which will be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or appeal in



the administrative route against the penalty. The percentage of reduction provided in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202300779, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to VODAFONE ONO, S.A.U.

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13/13

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Director of the Spanish Agency for Data Protection

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